

Hon'ble R.C. Khulbe vs Chaudhary And Others" Under Section 406 ... on 13 November, 2019

Author: R.C. Khulbe

Bench: R.C. Khulbe

C-482 No.603 of 2019

With

CRMA No.2622 of 2019 (Stay Vacation Application)

Hon'ble R.C. Khulbe, J.

Ms. Neetu Singh and Mr. Aditya Pratap Singh, learned Advocates for the applicants.

Ms. Mamta Joshi and Mr. Lalit Miglani, learned Brief Holders for the State.

Mr. Aditya Singh, learned Advocate for respondent no.2.

Heard learned counsel for the parties. This criminal miscellaneous application under Section 482 of Cr.PC has been filed for quashing and setting aside the summoning order dated 18.03.2019 and to stay the further proceedings in regard to applicants in case no.729/2019, "Smt. Isha Singh Vs. Arpit Chaudhary and others" under Section 406 IPC, registered at P.S. Raipur, District Dehradun pending before the 1st Additional Chief Judicial Magistrate, Dehradun, District Dehradun.

The crux of the case is that, the applicant- Smt. Isha (complainant) filed a complaint case no.729/2019, "Smt. Isha Singh Vs. Arpit Chaudhary and others" under Section 406 IPC. After recording the evidence under Section 200 and 202 Cr.P.C. the learned 1st Additional Chief Judicial Magistrate, Dehradun summoned the present applicants under Section 406 IPC. Aggrieved by it, the present criminal misc. application under Section 482 Cr.P.C. has been filed for quashing the impugned order.

Learned counsel for both the parties are present before this Court and fairly submitted that the compromise has taken place between the parties before Mediation Cell of the High Court. The report of the Mediation Cell is on record, which reveals that compromise has taken place between the parties. As per the compromise, the parties have filed a divorce petition under Section 13B of Hindu Marriage Act, 1958. Apart from that, as per the compromise, the respondent has paid Rs.5 lakh to the complainant-Isha Singh and the remaining amount would be paid at the time of passing the final order in matrimonial case.

Since, the compromise has taken place between the parties, and accordingly a joint petition under Section 13B of Hindu Marriage Act, 1958 has been moved by the parties before the Family Court, Roorkee, in these circumstances, the present criminal misc. application filed under Section 482 Cr.P.C. is allowed and impugned summoning order dated 18.03.2019 in case no.729/2019, "Smt. Isha Singh Vs. Arpit Chaudhary and others" under Section 406 IPC, registered at P.S. Raipur,

District Dehradun pending before the 1st Additional Chief Judicial Magistrate, Dehradun, District Dehradun as well as entire proceedings of the aforesaid case is hereby quashed.

In case of non-fulfillment of the conditions of the compromise reached between the parties, the parties have a right to move an application before this Court for recalling the order passed today.

Pending applications, if any, also stand disposed of.

(R.C. Khulbe, J.) 13.11.2019 Sukhbant